

FISHER & PAYKEL HEALTHCARE CORPORATION LIMITED

SECURITIES DEALING POLICY AND GUIDELINES

This policy applies to all Directors, officers and employees of Fisher & Paykel Healthcare Corporation Limited ("FPHC") and its subsidiaries who intend to deal in FPHC's securities¹. In this policy "dealing" in securities is a broad concept and it includes buying or selling shares, or agreeing to do so, whether as principal or agent, and the exercise or cancellation of options and the entering of agreements to buy or sell securities.

In addition to this Policy and Guidelines, further more specific and stringent rules also apply to trading in FPHC's securities, by Directors and certain employees (see [Additional Dealing Restrictions for Restricted Persons](#)).

Introduction and purpose

This document details FPHC's policy on, and rules for dealing in FPHC securities.

The requirements imposed by the policy are separate from, and may be in addition to, the legal prohibitions on insider trading in Australia, New Zealand and any other country where those securities may be listed.

If you do not understand any part of this policy, or how it applies to you, you should raise the matter with the Chief Financial Officer or the General Counsel before dealing with any securities covered by this policy.

Fundamental Rule – Insider trading is prohibited at all times

If you possess "material information" (refer to definition below), then, **whether or not** you are a Restricted Person below, you must not:

- deal in FPHC securities (including the exercise or cancellation of any options);
- advise or encourage others to trade, or hold any FPHC securities or;
- pass on the material information to others.

The prohibitions apply regardless of how you learn of the information, and regardless of why you are trading.

¹ "Securities" include but is not limited to:

- ordinary shares; and
- options or performance rights.

For the purposes of this policy, the term "securities" also extends to financial products issued or created over or in respect of securities issued by FPHC (for example, warrants and other derivative products), whether or not the financial products are created by FPHC or by third parties.

The prohibition on insider trading applies not only to information concerning FPHC's securities. If a person has material information in relation to listed securities of another issuer, that person must not trade in those securities.

Insider trading laws

If you have any **material information**, it is illegal for you to:

- deal in FPHC's securities (including the exercise or cancellation of options);
- advise or encourage another person to trade or hold FPHC's securities;
- advise or encourage a person to advise or encourage another person to trade or hold FPHC's securities; or
- pass on the **material information** to anyone else – including colleagues, family or friends – knowing (or where you ought to have known) that the other person will use that information to trade, continue to hold, or advise or encourage someone else to trade, or hold, FPHC's securities.

This offence, called "insider trading", can subject you to criminal liability including large fines and/or imprisonment, and civil liability, which may include being sued by another party or FPHC, for any loss suffered as a result of illegal trading.

Confidential information

You should also ensure that external advisers are required to keep confidential all FPHC's confidential information.

What is "material information" ?

"Material information" is information that:

- is not generally available to the market; and
- if it were generally available to the market, would have a material effect on the price of FPHC's shares.

Information is generally available to the market if it has been released as an NZSX or ASX announcement, or investors that commonly invest in FPHC's shares can readily obtain the information (whether by observation, use of expertise, purchase or other means).

It does not matter how you come to know the material information (including whether you learn it in the course of carrying out your responsibilities, or in passing in the corridor, or in a lift, or at a social function).

Information includes rumours, matters of supposition, intentions of a person (including FPHC), and information, which is insufficiently definite to warrant disclosure to the public.

What are some examples of material information ?

The following list is illustrative only. Material information could include information concerning:

- the financial performance of FPHC;
- a possible change in the strategic direction of the FPHC;
- the introduction of an important new product or service;
- a possible acquisition or sale of any substantial assets or company by FPHC;
- entry into or the likely entry into or termination or likely termination of material contracts or other business arrangements which are not publicly known;
- a possible change in FPHC's capital structure;
- a change in the historical pattern of dividends;
- a material legal claim by or against the FPHC; or
- any other unexpected liability,

which has not been released to the market.

If in doubt, don't

The rules contained in this policy do not replace your legal obligations. The boundary between what is (and is not) in breach of the law is not always clear. Sometimes behaviour that you consider to be ethical actually may be insider trading. If in doubt, don't!

Breaches of policy

Strict compliance with this policy is a condition of employment. Breaches of this policy will be subject to disciplinary action.

Monitoring of trading

FPHC may monitor the trading of directors and employees as part of the administration of this policy.

Application of policy

The Board of FPHC has approved this policy. The Board may approve updates, amendments to and exemptions to this policy from time to time, which may be implemented by posting on FPHC's intranet.

To the extent of any inconsistency with any previous policy or rules relating to this subject matter, this policy prevails over them.

27 August 2013

FISHER & PAYKEL HEALTHCARE CORPORATION LIMITED

ADDITIONAL DEALING RESTRICTIONS FOR RESTRICTED PERSONS

Persons covered by Dealing Restrictions

The additional dealing restrictions set out below apply to:

- all Directors;
- the Chief Executive and all senior officers (all Chief Executive direct reports);
- trusts and companies controlled by such persons;
- anyone else notified by the Chief Financial Officer from time to time; and
- other key management personnel not otherwise covered above.

Persons covered by these additional restrictions are called "**Restricted Persons**". Restricted Persons will be considered responsible for the actions of trusts and companies controlled by them. In this respect, "control" is not to be construed in a technical way but by looking at how decisions are made in practice.

Additional dealing restrictions for Restricted Persons (black-out period)

Restricted Persons are prohibited from dealing¹ in any Restricted Securities² during the following specific "black-out" periods:

- 30 September until the first trading day after the half-year results are released to NZSX;
- 30 days prior to FPHC's year-end balance date, until the first trading day after the full-year results are released to NZSX; and
- 30 days prior to release of a prospectus for a general public offer of the same class of Restricted Securities.

Restricted Persons are not permitted to deal in any Restricted Securities during a black-out period unless there are exceptional circumstances and they have received consent in accordance with the requirements set out in this policy.

¹ "Dealing" in securities is a broad concept and it includes buying or selling shares, or agreeing to do so, whether as principal or agent, and the exercise or cancellation of options and the entering of agreements to buy or sell securities.

² "Restricted Securities" include but is not limited to:

- ordinary shares; and
- options or performance rights.

For the purposes of this policy, the term "securities" also extends to financial products issued or created over or in respect of securities issued by FPHC (for example, warrants and other derivative products), whether or not the financial products are created by FPHC or by third parties.

Outside the black-out periods specified above, Restricted Persons may deal in FPHC's securities subject to the notification and consent requirements set out below.

Please note that if you hold material information you must not deal in Restricted Securities at any time – regardless of these periods or if consent to deal has been obtained under this policy. The Restricted Person is responsible for ensuring that the dealing does not breach this prohibition.

Requirements before dealing

Before dealing in Restricted Securities, at any time, Restricted Persons must, in writing:

- notify FPHC's Chief Financial Officer of their intention to deal in securities, and seek consent from any two directors of the company or a director and the Chief Financial Officer of the company ("Approvers") to do so (using the [Request for Consent to Deal in Securities](#) form attached);
- confirm that they do not hold material information; and
- confirm that there is no known reason to prohibit dealing in any Restricted Securities.

A consent is only valid for a period of 15 trading days after notification. A consent is automatically deemed to be withdrawn if the person becomes aware of material information prior to dealing.

Exceptional circumstances

If a Restricted Person needs to deal in Restricted Securities within a black-out period due to exceptional circumstances, Restricted Persons must (in addition to the above), also provide the following information together with the [Request for Consent to Deal in Securities](#) form:

- set out the circumstances of the proposed dealing (including an explanation as to the severe financial hardship or circumstances that are otherwise exceptional); and
- the reason the waiver is requested.

Exceptional circumstances for these purposes include severe financial hardship, compulsion by court order or any other circumstance that is deemed exceptional by the Approvers.

Consent to trade during a black-out period will only be granted if the application is accompanied by sufficient evidence (in the opinion of the Approvers) that the sale or disposal of FPHC's securities is the only reasonable course of action in the circumstances.

If consent is granted, written notification (which includes notification by email) will be provided to the Restricted Person. The approval will be valid for 5 business

days from the date that the notification of approval is provided to the Restricted Person.

Requirements after dealing

A Restricted Person must advise the Chief Financial Officer promptly following completion of any dealing in any FPHC securities, and the Restricted Person must comply with any disclosure obligations it has under the Securities Markets (Disclosure of Relevant Interests by Directors and Officers) Regulations (NZ) and the ASX Listing Rules.

Exclusions

The additional dealing restrictions set out above do not apply to:

- participation in an employee, executive or director equity plan operated by the FPHC (eg applying for an allocation of securities under an employee equity plan offer). However, where securities in FPHC granted under an employee, executive or director equity plan cease to be held under the terms of that plan, any dealings in those securities must only occur in accordance with the Securities Dealing Policy and Guidelines and the additional dealing restrictions set out above;
- the following categories of passive trades:
 - acquisition of FPHC securities through a dividend reinvestment plan;
 - acquisition of FPHC securities through a share purchase plan available to all retail shareholders;
 - acquisition of FPHC securities through a rights issue; and
 - the disposal of FPHC securities through the acceptance of a takeover offer;
 - dealings that result in no effective change to the beneficial interest in the securities (for example, transfers of FPHC securities already held into a superannuation fund or trust of which the Restricted Person is a beneficiary);
 - trading under a pre-approved non-discretionary trading plan, where the Restricted Person did not enter into the plan during a black-out period, the plan does not permit the Restricted Person to exercise any influence or discretion in relation to trading under the plan once the plan has begun and the plan cannot be cancelled before the expiry of the fixed period of the plan, other than in exceptional circumstances ("Fixed Trading Plan"); and
 - a disposal of securities of FPHC that is the result of a secured lender exercising their rights, for example, under a margin lending arrangement.

However, such dealings are still subject to the prohibitions against insider trading as set out in the [Securities Dealing Policy and Guidelines](#) where applicable.

Fixed Trading Plan

Before establishing a fixed trading plan, a Restricted Person must complete the [Fixed Trading Plan Consent](#) form attached.

**FISHER & PAYKEL HEALTHCARE CORPORATION LIMITED ("FPHC")
REQUEST FOR CONSENT TO DEAL IN SECURITIES**

In accordance with FPHC's Securities Dealing Policy and Guidelines and Additional Dealing Restrictions for Restricted Persons, I request FPHC's consent be given to the following proposed transaction to be undertaken either by me or persons associated with me, within 15 trading days of approval being given. I acknowledge FPHC is not advising or encouraging me to trade or hold securities and does not provide any securities recommendation.

Name: _____

Address: _____

Transaction Details:

1. Class of Securities: (i.e. Shares or Options)	2. Number of Securities: (i.e. Shares or Options)	3. Type of Transaction: <i>[Please tick]</i> Buy ☐ Sell ☐ Transfer ☐ Exercise or Cancellation (for Options only) ☐
4. Holder Number:	5. Likely Date of Transaction:	6. To be Transacted: <i>[Please tick]</i> On NZSX ☐ Off Market Trade ☐ Other ☐ Specify: _____

7. Name of Registered Holder Transacting (if different):

a. Personal:

b. Trust: [if a trust, please provide names of Trust and Trustees]

Name of Trust: _____

Name of Trustees: _____

c. If a Company, please advise name and describe your interest in the Company (i.e. shareholder)

Company Name: _____

d. Associated Person – please provide detail:

I declare that I do not hold information which:

- is not generally available to the market; and
- would have a material effect on the price of FPHC's shares if it were generally available to the market.

I know of no reason to prohibit me from trading in FPHC's shares and certify that the details given above are complete, true and correct.

Signature: _____

Company Position: _____

Date: _____

Consent:

FPHC hereby **consents/does not consent** to the proposed transaction described above. *Any consent is conditional on the proposed transaction being completed within 15 trading days of the date of this consent, and in compliance with FPHC's Securities Dealing Policy and Guidelines and Additional Dealing Restrictions for Restricted Persons.

Signature _____

Company Position: _____

Date: _____

Signature _____

Company Position: _____

Date: _____

**FISHER & PAYKEL HEALTHCARE CORPORATION LIMITED ("FPHC")
FIXED TRADING PLAN CONSENT FORM**

In accordance with FPHC's Securities Dealing Policy and Guidelines, Additional Dealing Restrictions for Restricted Persons, I request FPHC's consent be given to the following fixed trading plan. I acknowledge FPHC is not advising or encouraging me to trade or hold securities and does not provide any securities recommendation.

Name: _____

Address: _____

Transaction Details:

1. Period of Fixed Trading Plan: _____

2. Name of the person or company authorised to execute trades under the fixed trading plan: _____

3. Details of Fixed Trading Plan: *[Attach if space provided here is inadequate]*

4. Number of Shares: _____

5. Holder Number: _____

6. Type of Transaction: *[Please tick]*

Buy ☐

Sell ☐

7. Name of Registered Holder Transacting (if different):

a. Personal

b. Trust [if a trust, please provide names of Trust and Trustees]

Name of Trust: _____

Name of Trustees: _____

c. If a Company, please advise name and describe your interest in the Company (i.e. shareholder)

Company Name: _____

d. Associated Person – please provide detail:

I declare that I do not hold information which:

- is not generally available to the market; and
- would have a material effect on the price of FPHC's shares if it were generally available to the market.

I also confirm that I cannot withdraw from the fixed trading plan before the expiry of the fixed period of the plan nor am I able to influence the trading decisions of the person whom I have instructed after the plan has begun.

I know of no reason to prohibit me from entering this fixed trading plan and certify that the details given above are complete, true and correct.

Signature: _____

Company Position: _____

Date: _____

Consent:

FPHC hereby **consents/does not consent** to the proposed fixed trading plan described above.

Signature _____

Company Position: _____

Date: _____

Signature _____

Company Position: _____

Date: _____